IN THE HIGH COURT OF DELHI AT NEW DELHI

CS(COMM) 412/2025

Vardhan Infotech Private Limited v Kestrel Limited

PLAINT under Order VII Rule 1 of the Code of Civil Procedure, 1908

1. The Plaintiff, Vardhan Infotech Private Limited, is a company registered in India that supplies software services. The Defendant, Kestrel Limited, is a company that procured those services.

2. By a Master Services Agreement dated 12 January 2023 (the MSA), the Plaintiff agreed to build a procurement platform for the Defendant for a contract value of Rs. 48,00,000.

3. Under clause 2.2 of the MSA, the Deliverables were to be completed on or before 30 June 2024.

4. The Plaintiff completed the Deliverables and the platform went live on 12 July 2024.

5. On 15 September 2024 the Plaintiff raised invoice INV-014 for Rs. 18,40,000, payable within 30 days.

6. The Defendant has not paid invoice INV-014. The sum of Rs. 18,40,000 remains due and unpaid.

7. On 5 February 2025 the Plaintiff served a legal notice on the Defendant by speed post and e-mail demanding payment. The Defendant did not reply.

8. The Plaintiff is entitled to interest at 12% per annum under clause 3.2 of the MSA.

9. The Plaintiff has complied with Section 12A of the Commercial Courts Act, 2015 and a non-starter report was issued on 20 February 2025.

10. The cause of action arose on 15 October 2024 when invoice INV-014 fell due.

PRAYER

The Plaintiff therefore prays for:

(a) a decree for Rs. 18,40,000 against the Defendant;

(b) interest at 12% per annum from 15 October 2024 until realisation;

(c) costs of the suit.

Dated this 3 March 2025

Advocate for the Plaintiff